

Anderson Property Boundary Dispute

This action concerns a boundary dispute between neighboring property owners, plaintiff Robert Anderson and defendant Patricia Williams. The properties in question are located at 123 Oak Street and 125 Oak Street, respectively. The dispute arose when the defendant erected a fence that the plaintiff alleges encroaches upon his property by approximately three feet along a 50-foot boundary line. The plaintiff presented a recent survey conducted by a licensed surveyor showing the legal boundary line and demonstrating the encroachment. The defendant countered with evidence of adverse possession, claiming continuous and open use of the disputed area for over 20 years, including maintenance of landscaping and a garden shed. The court finds that while the defendant has used the disputed area, the use does not meet all requirements for adverse possession under state law. Specifically, the use was not hostile or adverse to the plaintiff's interests, as there was no clear demarcation or assertion of ownership until the recent fence installation. Therefore, the court orders the defendant to remove the fence and restore the boundary to its legal location as established by the survey. The defendant shall bear all costs associated with the fence removal and boundary restoration. The plaintiff is awarded reasonable attorney fees and court costs.